

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

7. DAVID SLAY V. KRYSTAL SLAY

23FL0827

On February 25, 2026, Petitioner filed a Request for Order (RFO) seeking an order regarding community debts. He filed his Income and Expense Declaration concurrently therewith. All required documents were electronically served the same day as filing.

Petitioner filed another RFO on March 27, 2026 seeking sanctions. All required documents were mail served on April 6th.

Respondent filed and served her Responsive Declaration to Request for Order and her Income and Expense Declaration on May 11th. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 8th the last day for filing the Responsive Declaration to Request for Order. As such, the declaration is late and the court has not read or considered it.

Petitioner is requesting an order directing Respondent to pay \$18,120.75 to cover her portion of community debt. He states this is pursuant to the Marital Settlement Agreement of the parties. He further seeks \$3,500 in Family Code § 271 sanctions.

After reviewing the moving papers as well as the stipulation of the parties filed with the court on November 24, 2025, it does appear that Respondent agreed to pay a portion of the community debt in the amount of \$18,608.25. However, it is unclear from the MSA if Respondent is to pay that amount directly to Petitioner for Petitioner to pay the debts or if Respondent is to pay the debts directly. The MSA expressly retains the court’s jurisdiction over the issues. In light of the foregoing, Respondent is ordered to pay Petitioner \$18,608.25. Petitioner is ordered to use these funds to pay of the community debts referenced in the MSA, if they have not already been paid. Respondent may pay Petitioner in one lump sum or in monthly payments in an amount agreed upon by the parties.

Petitioner has requested sanctions pursuant to Family Code section 271 which states, in pertinent part, “...the court may base an award of attorney’s fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney’s fees and

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

costs pursuant to this section is in the nature of a sanction.” Fam. Code § 271(a). While the purpose of Section 271 is to impose a punitive sanction, the court is not to impose a sanction that would create an “unreasonable financial burden on the party against whom the sanction is imposed.” *Id.*

Here, while it does appear that Respondent’s actions did cause Petitioner to incur unnecessary attorney’s fees, the court is concerned that imposing sanctions would be an unreasonable financial burden on Respondent. As such, the request for sanctions is denied. Respondent is admonished to ensure that she is communicating with opposing counsel and acting in good faith to resolve any disputes that may arise prior to filing an RFO. Failure to do so may result in monetary sanctions in the future.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: RESPONDENT IS ORDERED TO PAY PETITIONER \$18,608.25. PETITIONER IS ORDERED TO USE THESE FUNDS TO PAY OF THE COMMUNITY DEBTS REFERENCED IN THE MSA, IF THEY HAVE NOT ALREADY BEEN PAID. RESPONDENT MAY PAY PETITIONER IN ONE LUMP SUM OR IN MONTHLY PAYMENTS IN AN AMOUNT AGREED UPON BY THE PARTIES.

THE REQUEST FOR SANCTIONS IS DENIED. RESPONDENT IS ADMONISHED TO ENSURE THAT SHE IS COMMUNICATING WITH OPPOSING COUNSEL AND ACTING IN GOOD FAITH TO RESOLVE ANY DISPUTES THAT MAY ARISE PRIOR TO FILING AN RFO. FAILURE TO DO SO MAY RESULT IN MONETARY SANCTIONS IN THE FUTURE.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

LAW & MOTION TENTATIVE RULINGS

DEPARTMENT 5

May 21, 2026

8:30 AM/1:30 PM

**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

8. JESSICA STEPHENS V. DUSTIN CARELL-STEPHENS

PFL20170100

Petitioner filed a Request for Order (RFO) on February 25, 2026. All required documents were served by mail on February 26, 2026 and again on March 26, 2026.

Petitioner filed a declaration with the court on May 5, 2026 however, while there is no Proof of Service for this document, as it pertains to the service of the RFO, the court has read and considered it.

It does not appear service has been effectuated. Therefore, the court drops the matter from calendar.

TENTATIVE RULING #8: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF SERVICE.